

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

1A.

9:00 AM

MSP05-01409 ESTATE OF ALICIA MARIA FREEMAN

HEARING IN RE: PETITION FOR ORDER REFUSING TO ORDER DISTRIBUTION OF FUNDS FILED BY
CHARLES EDWARD BROWN, III ON 10/17/25

Need:

1. Appearances
2. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice
4. Proposed Order

Note: See related Case # C25-02679, set for continued hearing 7-27-2026, at 8:30 a.m. in Dept. 10.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

1B. **MSP05-01409** **ESTATE OF ALICIA MARIA FREEMAN**
9:00 AM HEARING IN RE: STATUS ON RECEIPT OF FUNDS DEPOSITED IN A BLOCKED ACCOUNT

Drop.

Note: Acknowledgement of Receipt of Order and Funds For Deposit in Blocked Account filed 2-26-2026.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

3. MSP07-00916 ESTATE OF JACK L GILLUM

9:00 AM HEARING IN RE: SIXTH ACCOUNT AND REPORT FILED BY EAST BAY SPCA ON 10/15/25

Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

4. **MSP18-00548** **MATTER OF KIMESHA C. KIRKSEY SPCL NEEDS TRUST**
9:00 AM HEARING IN RE: FOURTH ACCT AND REPORT; PETITION FOR SETTLEMENT OF ACCTS; BOND INCREASE;
FEES; APPOINTMENT OF CO-TRUSTEE AND NOMINATION OF SUCCESSOR TRUSTEE FILED ON 10/10/25
BY KAREN L. FISHER

Need:

1. Proof of mailing to all persons entitled to receive notice
2. Bond presented for filing before Order will be signed.
3. Verified declaration by petitioner to show nature and difficulty of tasks performed, results achieved, benefit of services to the beneficiary, and to specify the amount requested for each category of service provided. CRC § 7.776 (also time and hourly rate)
4. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

5. **MSP18-01726 ESTATE OF RICHARD COHN SR**
9:00 AM HEARING IN RE: PETITION TO SET ASIDE FINAL ORDER OF DISTRIBUTION FILED ON 10-15-25 BY
GEORGE COHN

Need:

1. Appearances
2. Petition verified. PrC § 1021. CCP § 2015.5. CRC 7.103
3. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
4. Proof of mailing to all persons entitled to receive notice
5. Proposed Order

Notes:

1. Spousal Property Order filed 5-16-2025.
2. Disability Accommodation Request received 10-21-2025.
3. Order Vacating Order for Probate Retroactively Due to Insolvency and Exonerating Bond Retroactively Nunc Pro Tunc filed 11-19-2025.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

6A. **P23-01646** **MATTER OF: THE ONO TRUST DATED SEPTEMBER 13, 1991**
9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF FIRST ACCOUNT AND REPORT OF TRUSTEE FILED BY
SUSAN HUSTED ON 08/07/2025

Need:

1. Appearances
2. Verified declaration in support of petitioner and attorneys' fees prayed
3. Proposed Order

Note: Petition requests approval of 1-6 accountings.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

6B.

9:00 AM

P23-01646

MATTER OF: THE ONO TRUST DATED SEPTEMBER 13, 1991

HEARING IN RE: PETITION AND OBJECTION TO ACCOUNTS AND REPORT OF TRUSTEES FILED ON
09/15/23 BY WILLIAM STEVEN ONO

Need appearances to report status, including mediation ordered 11-5-2024

Note: Response to Petition and Objection filed by Susan Husted 01/31/24.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

6C. **P23-01646** **MATTER OF: THE ONO TRUST DATED SEPTEMBER 13, 1991**
9:00 AM HEARING IN RE: PETITION TO COMPEL FORMAL ACCOUNTINGS FILED ON 06/07/24 BY WILLIAM
STEVEN ONO

Need appearances to report status

Note: Response filed by Trustee Susan Husted 10-18-2024.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

6D. **P23-01646** **MATTER OF: THE ONO TRUST DATED SEPTEMBER 13, 1991**
9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF SEVENTH ACCOUNT AND REPORT OF TRUSTEE FILED BY
SUSAN HUSTED ON 10/15/25

Need:

1. Appearances
2. Verified declaration in support of attorney's fees paid as reported at schedule of disbursements. Statement showing services rendered, hours and rates charged so court can evaluate attorney fees reported. LR 7.450
3. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

10A. P23-02147 ESTATE OF: SARA PADRON

9:00 AM

HEARING IN RE: FIRST AMENDMENT TO FIRST AND FINAL REPORT OF ADMINISTRATOR ON WAIVER
OF ACCOUNT FILED BY BERTHA FIERRO ON 10/13/25

See Line 10B

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

10B.

9:00 AM

P23-02147

ESTATE OF: SARA PADRON

HEARING IN RE: FIRST AND FINAL REPORT; PETITION FOR ALLOWANCE OF COMPENSATION; COSTS;
FINAL DISTRIBUTION FILED ON 06/19/25 BY BERTHA FIERRO

Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

12.

9:00 AM

P24-00947 ESTATE OF: EVELYN SETTON

HEARING IN RE: PETITION FOR FINAL DISTRIBUTION AND FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR FILED BY EDGAR SETTON ON 10/14/2025

Petitioner, brother, still must do the following:

1. Appear at the hearing
2. File a verified declaration to include decedent's father as a person entitled to receive notice. LR 7.300
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
4. File a verified declaration addressing creditor claim filed by Allied Trustee Services on 8-26-2024 for \$10,168.17. PrC § 10900; CRC § 7.403.
5. File a verified declaration addressing creditor claim filed by Allied Trustee Services on 12-12-2024 for \$13,479.62. PrC § 10900; CRC § 7.403.
6. File a verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir has previously been confined in any prison or other correctional facility. PrC §§ 216, 9202(b)
7. File a Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal. PrC § 1061(a)(1)
8. File a verified declaration of petitioner showing compliance with Probate Code § 11005
9. File a verified declaration to include a list of assets on hand for distribution. LR 7.301
10. File a verified declaration to clarify plan of distribution. Father Joseph Setton does not appear in plan of distribution. Declaration re: Assignment by mother Yvette Setton filed 9-5-2025.
11. Submit a revised, proposed Order as needed in resolution of above

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

13. P24-01579 ESTATE OF: DAVID FRISELLA

9:00 AM

HEARING IN RE: REPORT OF STATUS OF ADMINISTRATION & REQUEST FOR EXTENSION OF TIME TO
ADMINISTER THE ESTATE FILED ON 10-14-25 BY VAESNIG FRISELLA

Need:

1. Proof of mailing to all persons entitled to receive notice
2. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

14A.

9:00 AM

P25-01606

ESTATE OF DEBORAH JOHNSON

HEARING IN RE: PETITION FOR PROBATE OF LOST WILL & FOR LETTERS TESTAMENTARY FILED ON 9-11-25 BY SHANIECE COOPER

Petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to include the names, addresses, and relationships of heirs to complete the list at Petition item 8.
3. File a verified declaration to clarify whether or not decedent had a predeceased spouse. Petition item 5.a (2) (b) says that she did, but item 7.a says that she did not.
4. File a verified declaration to add deceased spouse with date of death to petition Item # 8, if needed per above. LR 7.151(d)
5. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
6. Have Notice of Petition to Administer Estate DE-121 published and file proof of publication with the Court. PrC § 8120
7. File a verified declaration to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner)
8. File a verified declaration to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child)
9. File a verified declaration to complete Petition item 2.d regarding Bond
10. File a verified declaration to complete Petition item 3.e, if needed per above
11. File a verified declaration to include a copy of the will.
12. Lodge Original Will (w/legal process). PrC § 8200

If Original Will cannot be found, will also need:

13. Evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
14. Proof of mailing notice that will/codicil is lost. PrC § 1202
15. Proof of Subscribing Witness Form DE-131. PrC § 8220.
16. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted
17. Need further evidence to overcome presumption of revocation. PrC § 6124

Notes:

1. Per 12-31-2025 minute order, Roshawn Johnson appeared in objection and court ordered written objections to be filed by 1-30-2025, or objections will be deemed waived.
2. Decl. of Roshawn Johnson filed 1-28-2026, in objection.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

14B.

9:00 AM

P25-01606

ESTATE OF DEBORAH JOHNSON

HEARING IN RE: COMPLAINT FOR DAMAGES; RETURN FUNDS, AMEND DEATH CERTIFICATE, FORGERY
FILED ON 10/20/25 BU SHANIECE COOPER

Petitioner still must do the following:

1. Appear at the hearing
2. Verify petition under penalty of perjury
3. File a verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
4. File Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
5. Submit a proposed Order

Note: Petition requests Penal Code damages.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

16.	P25-01831	MATTER OF: THE BALDACCI BYPASS TRUST CREATED UNDER THE BALDACCI TRUST DATED 12/2/86
9:00 AM	HEARING IN RE: PETITION FOR ORDER MODIFYING BYPASS TRUST PASS FILED BY ELIZABETH M BALDACCI, ELIZABETH ANNE BALDACCI MARTINO, AND THOMAS AUGUSTIN BALDACCI ON 10/13/25	
Petition Approved Proposed Order Submitted No Appearance Required		

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

17.	P25-01837	MATTER OF: THE JUDITH N. ELLISEN 1991 REVOCABLE INTERVIVOS TRUST, DATED AUGUST 6, 1991, AS AMENDED AND RESTATED.
9:00 AM	HEARING IN RE: PETITION FOR APPOINTMENT OF SUCCESSOR TRUSTEE FILED ON 10/14/25 BY KEVIN MEIN	
	Need: Proposed Order	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 12, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

18.	P25-01863	MATTER OF: ELMER AND ADELIE BISCHOFF SURVIVOR'S TRUST F/B/O MARK BISCHOFF
9:00 AM	HEARING IN RE: PETITION TO (1) REMOVE CO-TRUSTEES AND APPOINT SUCCESSOR TRUSTEE; (2) TO SUSPEND CO-TRUSTEES AND APPOINT TEMPORARY TRUSTEE; (3) FOR SURCHARGE FOR BREACH OF TRUST; (4) FOR ORDER COMPELLING RETURN OF TRUSTEE FEES; AND (5) TO INSTRUCT CO-TRUSTEES RE USE OF TRUST FUNDS FOR ATTY FESS FILED ON 10/16/25 BY MARK BISCHOFF	
	Need: 1. Appearances 2. Verified declaration by petitioner to estimate value of trust so court has sufficient facts to fix bond. PrC § 15602 <i>et seq.</i> 3. Bond presented for filing before Order will be signed. 4. Proposed Order	
	Note: Response and Objection filed by Katie Hawkinson and Ann Murphy 2-26-2026.	